

Servs. v. Carnahan, 499 F.3d 803 (8th Cir.2007) (finding the *Ex Parte Young* exception applied to attorney general where he could potentially have represented the state in a criminal prosecution that might have arisen indirectly out of an individual's failure to comply with the challenged voter-eligibility law). Nor does the attorney general need to have the full power to redress a plaintiff's injury in order to have "some connection" with the challenged law. *Citizens for Equal Prot. v. Bruning*, 455 F.3d 859, 864 (8th Cir.2006). In *Reproductive Health Services*, 428 F.3d at 1145-46, we found that a connection, more tenuous than the one here, was sufficient to make the attorney general amenable to suit under *Ex Parte Young*. In *Reproductive Health Services*, as here, the attorney general had no authority to initiate criminal prosecution. *Id.* Rather, the attorney general could only participate in a criminal proceeding if his assistance was requested by the assigned county attorney or the trial court asked him to sign indictments. *Id.* Further, in *Reproductive Health Services*, the attorney general did not have the connection to the civil enforcement of the statute that is present here. Nonetheless, there we held that—although the connection was not strong enough to support the issuance of a preliminary injunction against the attorney general—it was strong enough to bring the attorney general into the *Ex Parte Young* exception and make him a potentially proper defendant. *Id.* In the instant case, the three-fold connection plaintiffs have alleged is sufficient to make Swanson amenable to suit under the *Ex Parte Young* exception to Eleventh Amendment immunity.

B. Failure to State a Claim

Because we find that the district court erred when it dismissed plaintiffs' complaint for lack of a subject-matter jurisdiction, we consider the court's alternate

ground for dismissal: that plaintiffs failed to state a claim upon which relief can be granted. We review de novo a district court's dismissal of a complaint under Federal Rule of Civil Procedure Rule 12(b)(6) for failing to state claim. *Smith v. St. Bernards Reg'l Med. Ctr.*, 19 F.3d 1254, 1255 (8th Cir.1994).

The district court concluded that the kind of speech regulated by section 211B.06 falls outside the protections of the First Amendment and, thus, the district court upheld section 211B.06 without conducting a strict-scrutiny analysis. We conclude this approach was erroneous and remand the case to allow the district court to determine whether section 211B.06 is narrowly tailored to serve a compelling interest of the State of Minnesota.

As a general rule, content-based speech restrictions can only stand if they meet the demands of strict scrutiny. *United States v. Playboy Entm't Group, Inc.*, 529 U.S. 803, 813, 120 S.Ct. 1878, 146 L.Ed.2d 865 (2000). However, there is an exception to this rule for "certain well-defined and narrowly limited classes of speech, the prevention and punishment of which has never been thought to raise any Constitutional problem." *Chaplinsky v. New Hampshire*, 315 U.S. 568, 571-72, 62 S.Ct. 766, 86 L.Ed. 1031 (1942). The categories of speech that the Supreme Court has found fall outside the First Amendment include fighting words, obscenity, child pornography, and defamation; statutes restricting speech from one of these categories are not subject to strict scrutiny as long as they are viewpoint-neutral. *R.A.V. v. City of St. Paul*, 505 U.S. 377, 382-88, 112 S.Ct. 2538, 120 L.Ed.2d 305 (1992). The district court concluded that knowingly false speech is another category in this group of exceptions. We disagree. We find that the Supreme Court has never